IN THE HIGH COURT OF JUSTICE

BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES

COMMERCIAL COURT (KBD)

Claim No. CL-2026-000148

BEFORE His Honour Judge Pemberton sitting as a Judge of the High Court

B E T W E E N

BRIGHTWATER ANALYTICS LIMITED — Claimant

and

CALDERVALE UNDERWRITING LIMITED — Defendant

ORDER (Costs and Case Management Conference)

UPON the costs and case management conference heard on 19 March 2026

AND UPON hearing Mr Gallagher for the Claimant and Mr Jennings of counsel for the Defendant

IT IS ORDERED THAT:

1. **Disclosure.** The parties shall give Extended Disclosure on Model C by reference to the Issues for Disclosure in the agreed List of Issues, by 4pm on 15 May 2026.

2. **Availability evidence.** The parties shall by 29 May 2026 exchange the underlying platform-availability monitoring data for the period 1 January 2025 to 17 October 2025, together with a note explaining the measurement methodology applied.

3. **Witness statements.** The parties shall exchange signed witness statements of fact by 4pm on 26 June 2026.

4. **Expert evidence.** The parties have permission to rely on the written evidence of one expert each in the field of IT service measurement, reports to be exchanged by 31 July 2026, with a joint statement by 21 August 2026.

5. **ADR.** The parties shall by 11 September 2026 consider whether the dispute is capable of resolution by mediation and, if so, use reasonable endeavours to mediate.

6. **Trial.** The matter be listed for trial in a window commencing 12 January 2027, with an estimated length of 4 days, before a Judge of the Commercial Court.

7. **Costs.** Costs of and occasioned by the CMC be costs in the case.

Dated: 19 March 2026

By the Court